

Pooran Kumar Singh v. State of U.P.

Allahabad High Court · Division Bench · 25 January 2019 · Writ-C No. 2901 of 2019 · **Writ disposed; cl. 6.8 representation to EE after hearing**

HEADNOTE

A consumer seeking quash of a Rs. 45,000 electricity recovery notice, in a matter in which an FIR for theft of electricity had been lodged, was held to have a remedy under clause 6.8 of the Electricity Supply Code, 2005 by representing to the concerned Executive Engineer. The writ was disposed with a time-bound direction to consider and decide that representation in accordance with law after personal hearing. The Court did not adjudicate the claim on merits.

FACTUAL SUMMARY

Pooran Kumar Singh petitioned the Allahabad High Court to quash a recovery notice dated 28 November 2018 demanding Rs. 45,000 as electricity dues. The writ averments recorded that an FIR had been lodged against him and that the case was one of theft of electricity. Standing Counsel appeared for the State respondents; counsel accepted notices for the Purvanchal Vidyut Vitran Nigam Limited officers, including the Executive Engineer of Purvanchal Vidyut Vitran Khand-II, Prayagraj.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8-representation-theft-recovery

HOLDING

A writ seeking quashing of an electricity recovery notice in a theft case (FIR lodged) is not decided on merits. The consumer has a remedy under clause 6.8 of the Electricity Supply Code, 2005 by representing to the Executive Engineer, who shall consider and decide the representation in accordance with law after personal hearing. ¶ 1

FLAG clause 6.8 applied to admitted theft/FIR; 8.1-8.2 ordinarily govern theft assessment

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RS. 45,000 RECOVERY AND THE THEFT ALLEGATION

Court expressly stated it had not adjudicated the petitioner's claim on merit. ¶ 1